

posed that the testator meant an income given with reference to one establishment, to be split into as many different incomes as there are children (*h*). But it has been said that if a daughter marry, and afterwards becomes a widow and has no support, the right to maintenance may revive (*i*).

15. **Attaining 21.** — Whether a child's right to maintenance will cease *ipso facto* by his or her attaining the age of twenty-one years, must depend, of course, upon the particular words used (*j*), but is open generally to some uncertainty (*k*). It can hardly be maintained, on the one hand, that when a child has attained majority, and is fairly launched into the world, and is making a livelihood, the trust is to continue (*l*); and, on the other hand, if a child be willing to remain at home, and no reasonable objection can be made to it, the person bound by the trust cannot refuse maintenance on the mere ground that the child has attained twenty-one (*m*).

16. **Case of tenant for life bound by such a trust with remainder over.** — If a person be entitled for life for the maintenance of herself, and the maintenance and education of the testator's children, and *after her death the trust is for the children absolutely, a child on coming of age cannot, even with the concurrence of the tenant for life, call for a transfer of a proportionate share of the property, if this diminution of the fund would endanger the right of the other children to be properly maintained and educated during the tenancy for life. The Court in such a case has adopted the expedient that a *part* of the child's share should be paid out on his undertaking to account for the income of it, and on the footing that the residue of the share should be retained as a security for the due payment of the income (*a*). Where there was a clear trust for the

612; Longmore v. Elcum, 2 Y. & C. C. C. 370; Wilson v. Bell, 4 L. R. Ch. App. 581.

(*h*) See Thorp v. Owen, 2 Hare, 613.

(*i*) Scott v. Key, 35 Beav. 291; [Wilkins v. Jodrell, 13 Ch. D. 564, 573.]

(*j*) See the cases reviewed by V. C. Wood in Gardner v. Barber, 18 Jur. 508.

(*k*) Longmore v. Elcum, 2 Y. & C. C. C. 370; Thorp v. Owen, 2 Hare, 610.

(*l*) See Thorp v. Owen, 2 Hare, 612; Carr v. Living, 28 Beav. 644.

(*m*) See Carr v. Living (No. 2), 33 Beav. 474; Thorp v. Owen, 2 Hare, 613; Scott v. Key, 35 Beav. 291.

(*a*) Berry v. Briant, 2 Dr. & Sm. 1.